

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.: 2020 CA 001021

RUSTIN R. HOWARD

Division: E

Defendant

and

THOMAS J. JOHNSON,

Defendant

PLAINTIFF MOSZKOWSKI'S MEMORANDUM IN SUPPORT OF HIS
MOTION IN OPPOSITION

Plaintiff MARC M. MOSZKOWSKI (hereinafter referred to as "MOSZKOWSKI"), Pro Se, hereby submits this Memorandum in Support of his Motion in Opposition to Defendants HOWARD and JOHNSON's Motion to Dismiss the complaint¹.

Counsel for Defendants HOWARD and JOHNSON wrote in page 2 of his Motion to Dismiss:

¹ Refer also to MOSZKOWSKI's "*Motion to Strike the Complaint as a Sham*", case 2018 CA 000543, in the Circuit Court in and for Escambia County, Florida.

"Moreover, there was not a bona fide adjudication on the merits of the case in Plaintiffs favor, as by Plaintiffs own allegation in Paragraph 10 of the Complaint, 1 Count was ruled on in DeepGulf's favor in the underlying litigation."

MOSZKOWSKI must vigorously object again that while the Court had ruled in favor of MOSZKOWSKI on 8 out of 9 Counts, the ruling on Count I, which was based on a draft written by no other than Counsel for the Defendants himself, was at the same time moot, erroneous, absurd, inapplicable, and exposed DeepGulf, Inc. to further litigation at the instigation of others. As such it can hardly be deemed to be vindication for DeepGulf, Inc. Because of the recurring conflicts of interest in the case, MOSZKOWSKI could however not appeal the judgement for Count I, since he not only suffered no personal injury by it, but as the largest shareholder of DeepGulf, Inc., with nearly 50% of the stock, he was in fact theoretically deriving a benefit from the absurd and inapplicable ruling, for which the responsibility must be attributed entirely to Counsel² for DeepGulf, Inc., who is the one who drafted it.

² Who is also Counsel for Defendants HOWARD and JOHNSON in this case.

MOSZKOWSKI has abundantly demonstrated the following in previous litigation and correspondence with the Defendants and their Counsel:

1. Although Counsel for DeepGulf, Inc. was adamant in Count I of his lawsuit that MOSZKOWSKI turn over to DeepGulf, Inc. all the patents MOSZKOWSKI had authored, MOSZKOWSKI asserts again that the **claim was in fact moot**, since MOSZKOWSKI had, in 2005, more than a decade before the lawsuit was filed, already formally assigned to DeepGulf, Inc. his patent interests³. The Court awarded Count I to DeepGulf, Inc. for property that MOSZKOWSKI had already definitively assigned to DeepGulf, Inc. 13 years earlier, as was recounted literally in the body of DeepGulf, Inc.'s Count I itself. However, DeepGulf, Inc.'s HOWARD neglected to exercise the patent assignments, demonstrating sheer negligence for which HOWARD can only blame himself, although he had the brazen audacity to scheme a lawsuit against MOSZKOWSKI for it.

Quite incongruously, the very patent on which DeepGulf, Inc. was founded in 2004, "*J-Flex*", which was the only patent on which

³ See Count I, paragraph 15, of DeepGulf, Inc.'s complaint, in which the assignment is mentioned *verbatim*.

DeepGulf, Inc.'s HOWARD had exercised in 2007 the interest assignments granted elsewhere by its two co-inventors, was unforgivably allowed to lapse in 2016 because DeepGulf, Inc.'s HOWARD irresponsibly neglected to pay the small annual maintenance fee to the United States Patent and Trademark Office (USPTO).

2. In addition to the Count being in effect moot, the U.S. District Court followed Counsel for DeepGulf, Inc.'s proposed wording regarding judgement for Count I and declared in the Final Judgement that DeepGulf, Inc. "owns" the patents, which MOSZKOWSKI stresses again is untrue and misleading, since there exists another third party co-inventor⁴ on each and every one of the patents, who did not assign his interest to DeepGulf, Inc. (and there's no reason to believe he would or will). DeepGulf, Inc. could therefore not "own" the patents, but only the partial assignment of MOSZKOWSKI's co-interest, which partial co-interest MOSZKOWSKI had already assigned to DeepGulf, Inc. more than a decade prior, on September 15, 2005. There is no doubt that the other co-inventor will be dissatisfied with the order,

⁴ Whose name appears clearly at the top of each patent right next to MOSZKOWSKI's, and who is well known to HOWARD.

which unduly spoils him of his interest, and he will be entitled to seek legal redress from DeepGulf, Inc..

3. To add insult to injury, had the above-mentioned co-inventor⁵ not paid several months after judgement the maintenance fee for the first patent on DeepGulf, Inc.'s list (\$1,250 for patent 9644792), that patent would also have lapsed as a consequence of DeepGulf, Inc.'s HOWARD and JOHNSON's negligence, intellectual dishonesty, and/or incompetence.

One would be well entitled to question the motive for which HOWARD and JOHNSON proceeded to cause DeepGulf, Inc. to sue MOSZKOWSKI in a court of law regarding intellectual property which he not only had already formally transferred to DeepGulf, Inc. more than a decade prior, but which in addition they would hasten to waste and trash through sheer negligence and/or incompetence.

4. Furthermore, although the declared premise in the final judgement was that only intellectual property conceived by MOSZKOWSKI after September 15, 2005 through the date of judgement be owned by

⁵ Said co-inventor was never notified by the Court that, at the instigation of Counsel for HOWARD and JOHNSON, he had been unwittingly spoiled of his property.

DeepGulf, Inc., at the instigation of Counsel for DeepGulf, Inc. the written judgement specifically incorporated intellectual property which dated from nearly a year before September 15, 2005⁶.

As stated above, although MOSZKOWSKI is quite certain that in all honesty erroneous rulings must be annulled, it so happens that, because of the recurring conflicts of interest in the case, he could however not appeal the absurd judgement on Count I, since he not only suffered no injury by it, but also, as the largest shareholder of DeepGulf, Inc., with nearly 50% of the stock, he was in fact theoretically deriving a benefit from the irrational decision that was purported to have been taken against him. However, he also stresses that the unreasonable judgement for Count I, the wording of which Counsel for Defendants HOWARD and JOHNSON whispered himself in the Judge's ear, can by no stretch of imagination be considered by anyone as vindication for his client(s)⁷.

⁶ United States Patent Publication number 20060130729, which was filed on December 20, 2004.

⁷ MOSZKOWSKI, who is not a lawyer, wonders whether perhaps it is not a procedural sleight of hand on the part of a plaintiff to introduce in bad faith some tautological truisms in the very first count of an otherwise doomed mendacious complaint, which, moreover, was filed long after the expiration of the Statute of Limitations, in the hope of being able to claim afterwards that the lawsuit was not flatly defeated on all counts. However, in this case the purpose would be jeopardized by the additional absurdities unwittingly added by the plaintiff.

Signed, this 17th day of January, 2022.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Phone: +1(850)316 8462

Le Verdos

83300 Châteaudouble, France

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 17th day of January, 2022, a copy of this motion has been provided to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.